

TENTATIVE RULING

Case: Cruz v. Philip
Case No. CV2025-1574

Hearing Date: June 30, 2026 Department Fourteen 9:00 a.m.

On the Court's own motion, plaintiff Mark Angelo Cruz's unopposed motion to compel deposition of Kenneth Matthews is **CONTINUED** to **July 30, 2026**, at 9:00 a.m. in Department Fourteen.

Plaintiff is **DIRECTED** to meet and confer with nonparty Kenneth Matthews regarding the issues identified plaintiff's motion – in person, by videoconference, or by telephone – by July 10, 2026. (Code Civ. Proc., §§ 2025.480, subd. (b), 2016.040, subd. (a) ["A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion"]); see generally Crum decl.)

By July 16, 2026, plaintiff **MUST** file a new meet and confer declaration regarding his meet and confer efforts and any remaining issues for the Court's determination.

By July 23, 2026, nonparty Kenneth Matthews may file a responsive meet and confer declaration.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the July 30, 2026, hearing be vacated.

TENTATIVE RULING

Case: **Khugiani v. Jecole Enterprises, Inc.**
Case No. CV2024-2623

Hearing Date: **June 30, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Wahid Khugiani's motion for leave to file his first amended complaint is **GRANTED**. (Code Civ. Proc., § 473, subd. (a)(1).) "Generally, leave to amend should be liberally granted." (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739.) While "unwarranted delay justifies denial of leave to amend," plaintiff has sufficiently explained his delay in seeking leave to amend. (*Ibid.*; O'Connell decl., ¶¶ 2, 4.) The Court finds that plaintiff's delay does not prejudice defendants Jecole Enterprises, Inc. and Don Jordan because there is no trial date, plaintiff provided a reasonable explanation for the delay, and parties have ample time to further investigate these causes of action. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486.)

Plaintiff is **DIRECTED** to incorporate proposed changes into a first amended complaint and file his first amended complaint by **July 14, 2026**. (O'Connell decl., ¶ 6, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.